

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 12, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook (arriving at 6:03 p.m.), Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne (arriving at 6:11 p.m.), Scott Roybal, Dicky Shanor and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.). Carol Intlekofer, City Clerk, noted that Item #23 had inadvertently been placed on the Consent Agenda and would be read into the record and open for discussion. Upon request by Mr. Shanor, and pursuant to support received by Mr. Johnson and Mr. White, Item #21 was removed from the Consent Agenda. Mr. Luna moved to approve remaining Consent Agenda items, seconded by Mr. Case. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Mr. Johnson voting “no”.

[CA] Minutes from Special Meeting of the Governing Body on May 15, 2017. Motion (per Consent Agenda) carried.

[CA] Minutes from Regular Meeting of the Governing Body on May 22, 2017. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Tyrrell Chevrolet) and vacated Council Chambers. Mr. Case moved to approve payment of vouchers as presented, seconded by Mr. Cook. Upon inquiry, Jim Voeller, City Engineer, provided information on vouchers payable to AVI (professional services for project at Duff and 20th St.) and Western Research and Development, Ltd. (consultation services for 19th/20th O’Neil Alley project). Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers with the exception of Mr. Laybourn voting “no”. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

Mayor Orr opened a Public Hearing for proposed budget for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2018 for the purpose of receiving comments and input. Joe Dougherty commented on employee salary adjustments and health insurance costs. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the public hearing.

ORDINANCE -- 3rd READING – An Ordinance creating Sections 8.60.181, Notice to

Lienholder, and 8.60.182, Junk Vehicle Impoundment-Transfer of Title to the City, of Chapter 8.60, Nuisances, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming. Phil Degiorgio, Cheyenne Collision Center, inquired whether the ordinance would impact his business services due to vehicles awaiting repair that are parked outside. Emmett Lusher, Code Enforcement Officer, Cheyenne Police Department, advised the ordinance doesn't pertain to establishments that are zoned to conduct business. Chuck West discussed potential areas of abuse regarding enforcement discretion and provided scenarios relating to the topic. Mr. Lusher advised the Board of Adjustment would serve as discretionary protection for the public. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Luna. Mr. Case moved to amend by substitute, seconded by Mr. Cook. It was noted the substitute provides a more expanded definition for "junk vehicle" and clarifies the procedure for an owner who may seek to recover proceeds if their vehicle is sold at auction. Discussion followed and included a suggestion that a public meeting be scheduled to provide information on the ordinance to the community. Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion as amended carried. Voting "yes" -- all members of the governing body with the exception of Mr. Johnson voting "no". (#4179)

ORDINANCE – 3rd READING – Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Johnson and Mr. Luna voting "no". (#4180)

ORDINANCE – 3rd READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 2.2.7 of the UDC to clarify what land uses are subject to the special use approval provision. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body. (#4181)

ORDINANCE – 3rd READING - Amending Section 2.08.010, Appointment and term – Removal – Vacancy, of Chapter 2.08, City Officers and Employees Generally, of Title 2, Administration and Personnel, of the code of the City of Cheyenne, Wyoming. Mr. White moved to approve on third and final reading, seconded by Mr. Johnson. Mr. White moved to amend by adding "planning and development director" prior to the language "support services director" in Section 2.08.010 (A), seconded by Mr. Cook. Comments were made in support of the amendment. Motion to amend carried. Voting "yes" -- all members of the governing body. Upon inquiry, Mayor Orr advised the support services director and community recreation and events director positions would be forthcoming before City Council for approval; the planning and development director job description will need to be updated and posted for applicants, and stated she is interested in extending the length of terms for appointed positions from two year to four years to coincide with the elected term of the mayor and assist with recruitment and retention of appointed personnel. Upon inquiry, Sylvia Hackl, City Attorney, explained the term length of appointed positions is currently set by City Code and is not contained in state statutes. Main motion as amended carried. Voting "yes" -- all members of the governing body. (#4182)

ORDINANCE – 3rd READING – Appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2017 and ending June 30, 2018. Bob Fecht, Cheyenne Animal Control/Shelter, and Wally Erickson, Cheyenne Downtown Development Authority (DDA) Board, each spoke about current economic and budgetary concerns and commented in support of proposed amendments to the budget ordinance that would be offered during Council discussion involving the Animal Shelter and DDA. Reporting for Committee of the Whole, Mr. Shanor moved to approve on third and final reading, seconded by Mr. Luna. Mr. Shanor moved to amend by substitute ordinance, seconded by Dr. Rinne, which includes the following amendments made and approved at the May 7, 2017 Committee of the Whole (COW) meeting: Reduce the following budgets: Mayor's, \$85,500.00; Community Recreation and Events, \$10,000.00; Engineering, \$10,000.00 to be removed from the Planning and Development Department budget; Public Works, \$30,000.00, for a total of \$135,500.00 to be placed in unrestricted reserves; remove \$139,000.00 from Economic Development (Animal Shelter line item) to be placed in unrestricted reserves (total of \$274,500.00); transfer \$274,500.00 into unrestricted reserves (which reflects the foregoing budget cuts); transfer \$1,270,000.00 from Miscellaneous Revenue and place into a new line item in unrestricted reserves designated for Capital Improvement Projects; increase revenue as follows: \$63,000.00 for 6 new bar and grill liquor licenses; \$80,000.00 projected additional Ice and Events and Civic Center revenue; \$100,000.00 projected additional sales tax tourism revenue (total of \$243,000.00); reduce department health insurance premium line items (prorated by department for current employee accounts) and place in unrestricted reserves; keep full-time employee numbers per department as referenced (at Committee of the Whole meeting) for a total of 572 full-time employees; from Transfer line item remove \$188,000.00 (from Solid Waste fee schedule revenue), and all other deductions and cuts, and place in unrestricted reserves for a new balance of \$810,900.00. Brief discussion followed on including a dollar amount for the amendment contained in the substitute involving employee health insurance premiums. Motion to amend by substitute carried. Voting "yes" -- all members of the governing body. Mr. Shanor moved to amend the substitute ordinance by reducing department health insurance premium line items prorated by department for current employee accounts and place the savings of \$535,425.00 in unrestricted reserves, seconded by Mr. Roybal. Motion carried. Voting "yes" -- all members of the governing body. Upon inquiry, David Pope, DAPCPA Pope & Jackson, Inc., Contract City Treasurer, provided information on past and future payments due for parking structure bonds. Discussion followed on the need for a long term payment strategy to pay off the bonds and possibility of looking at a biennial instead of annual budget process. Mr. Shanor moved to amend the substitute ordinance by putting \$139,000.00 from unrestricted reserves back into the Economic Community Development expenditure line item to bring the Animal Shelter line item up to \$299,000.00, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Case and Mr. Johnson voting "no". Mr. Shanor moved to reduce the Economic Community Development expenditure line item by \$60,000.00, which will reduce the DDA block grant funding accordingly, seconded by Mr. Cook. It was noted that in addition to block grant funding there is an additional \$100,000.00 in the 1% Sales Tax 2015-2018 line item dedicated to the DDA resulting in total funding for DDA in the amount of \$390,000.00. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Johnson voting "no".

Following a brief recess, Mayor Orr reconvened the meeting at 7:10 p.m. Mr. Shanor moved to amend the substitute ordinance by putting \$450,000.00 of the newly created \$1.27 million Capital Improvement line item into Miscellaneous Revenue to be used for the \$450,000.00 bond payment on the Spiker parking structure with the Capital Improvement line item reduced accordingly, seconded by Mr. Roybal. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Johnson voting "no". Mr. Shanor moved to freeze the following eight vacant personnel positions, seconded by Mr. Case: Attorney/Legal Administrative Assistant; Building/Combination Inspector; Human Resources Coordinator; Municipal Court/Deputy Clerk; Parks/Sprinkler Technician; Parks/Forestry/Arborist II; Planning/Development/Planner II and Planning/Development/Planning and Development Manager with the freeze remaining in place until \$100,741.00 in payroll savings is realized during Fiscal Year 2018 and said savings are placed in general fund reserves. During discussion, Mayor Orr asked that consideration be given to savings that will be realized with unfilled positions, until filled, for the Fire Chief and City Treasurer positions. Mr. Shanor clarified the motion would read that any payroll savings at all realized as of July 1 would count toward the \$100,741.00 and as soon as that was met in backfilled reserves the hiring freeze on the eight named positions would be lifted. Discussion followed on vacancy savings; re-appropriation request in the future to move the savings into unrestricted reserves from which money will need to be taken now and backfilled later. Mayor Orr questioned whether unspent budget funds from the various departments remaining at the end of the current fiscal year could count toward the \$100,741.00 amount with Mr. Shanor stating that would not be specific to his proposed amendment which is to realize payroll savings independent of those reversions, noting the reversions could go into unrestricted reserves to be used at the governing body's discretion. During discussion, Sylvia Hackl, City Attorney, and Mr. Pope offered suggestions on how to handle funding and repayment of the \$100,741.00 from reserves, and inserting the freeze of positions, if the motion was approved, into the budget ordinance as a footnote. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Johnson and Mayor Orr voting "no". Mr. Shanor moved to amend to indicate that by the end of Fiscal Year 2018 the Mayor will reduce the City's permanent total full-time employee count from 572 to 568 or less and identify a combination of recurring revenues and cuts to recurring expenditures to pay for the \$475,000.00 parking structure bond payment due in Fiscal Year 2019, seconded by Mr. Case. It was noted the amendment would not be specific to departments but overall the employee count would not exceed 572 and would be reduced to 568 by the end of Fiscal Year 2018 and will help with funding future parking structure bond payments. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Johnson voting "no". Mr. Shanor moved to amend the footnote to the budget as recommended at the last Committee of the Whole meeting to "cap" the total number of authorized full-time employees at 572 with the "cap" applying to the total full-time employee count with no "cap" at the department level for the number of authorized employees, seconded by Mr. Roybal. Motion carried. Voting "yes" -- all members of the governing body. Mr. Shanor moved that starting July 1, 2018 and for the remainder of Fiscal Year 2018 no employee hired after the effective date of this ordinance shall have a base salary that exceeds the October 1, 2013 Mercer Group, Inc. Compensation and Classification Study market maximum rate for the position grade for which the employee is being hired, seconded by Mr. Cook. Discussion topics included: Amendment leaving "wiggle room" for administrative employee recruitment and retention purposes; updating the salary study and resources available as a guide for salary

data for the region. Motion carried. Voting “yes” -- all members of the governing body. Comments on the main motion as amended included having a balanced budget based upon all of the amendments, and clarification of the funding amount for DDA. Main motion as amended (9 times) carried. Voting “yes” -- all members of the governing body with the exception of Mr. Cook and Mr. Johnson voting “no”. (#4183)

ORDINANCE – 2nd READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from LR Low-density Residential and P Public to MR Medium-density Residential and P Public for all of Block 4 (Lots 1 thru 9 inclusive), and those adjacent alley rights-of-way, Spring Valley Addition, Cheyenne, Wyoming (located at the southeast corner of the intersection of Townsend Place and Marjon Court) (postponed from May 22, 2016). Commenting on the ordinance were: Leslie Arnett, Mitch Gerharter, Will Sadler and Marian Kline. Topics discussed included: Neighborhood concerns involving the proposed re-zoning and residential project development plans by the property owner/developer; 50 year vs. 100 year flood events; neighborhood covenants; protest petition that had been filed; “spot” zoning concerns, and rights of property owners. Kelly Hafner, BenchMark Engineers, agent for the applicant, provided information regarding drainage in the area. Deb Roden, attorney, Woodhouse Roden Nethercott law firm, representing the property owner/developer, explained revised residential dwelling development plans that have been submitted and addressed complaint categories that had been presented by the neighborhood, noting the project meets City requirements. Ms. Roden noted she had submitted a letter to the City Planning Department requesting the protest petition previously submitted by members of the neighborhood be reconsidered to not be a factor affiliated with the re-zoning ordinance due to development plan changes. Ms. Arnett stated her concerns with potentially having to re-acquire names on a new protest petition. Susana Montana, Development office, clarified the ordinance will re-zone nine lots from LR to MR and does not condition anything on the final plat, and Casey Palma, Steil Surveying Services, agent for the applicant, stated Development staff had advised him a change to the ordinance could be submitted to provide that it be conditioned upon the final plat. Sylvia Hackl, City Attorney, clarified that the ordinance was before Council on second reading, and not third and final, and a simple affirmative majority vote would move the ordinance forward to final reading. Upon inquiry, Mr. Palma discussed a conditional zone change that could be affiliated with approval of the final plat and possible wording that could be included on the plat. Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Discussion included potential assurances that could be provided to the neighborhood involving development plans; plat notes; conditional re-zoning ordinance; property owner/developer rights; contiguity and zone classifications; consideration of zoning ordinances separate from final plats; drainage; covenants, and obstructions in the floodway. During discussion information was provided by Ms. Montana, Mr. Hafner and Ms. Hackl, who responded to inquiry regarding covenants, noting covenants can not be enforced through governmental action as it is a civil action. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mr. Cook, Mr. Luna and Mr. Shanor voting “no”.

ORDINANCE – 2nd READING – Defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne for Fiscal Year 2017-2018. Mr. White moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes”-

- all members of the governing body.

ORDINANCE – 2nd READING – Defining the terms and conditions of employment for sworn officers of the Cheyenne Police Department for Fiscal Year 2017-2018. Mr. White moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” - all members of the governing body.

Following a brief recess, Mayor Orr reconvened the meeting at 8:55 p.m.

ORDINANCE – 2nd READING – Repealing Chapter 5.12, Alcoholic Beverages, in its entirety and creating a new Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the code of the City of Cheyenne, Wyoming. Chief Brian Kozak, Police Department, provided information on meetings and discussions with local liquor licensees on over service issues and the ordinance section proposing implementation of administrative fees, noting that a proposed substitute ordinance will be submitted for consideration at the next Finance Committee to amend ordinance wording based upon his discussions with the liquor dealers. Commenting on the ordinance were: Kevin Georges, Laramie County Beverage Association; Kevin Beers, Cadillac Ranch Bar; Georgia Broyles; John Lambousis and Bob Langhoff, Two Bar Bowl. Topics discussed included: Amending the ordinance pursuant to concerns expressed by local liquor dealers; licensee and permittee accountability; enforcement and interpretation concerns; underage drinking and state law change that will remove the dispensing room requirement for certain license types, and providing an exemption to allow persons under the age of 21 years to be allowed in bowling alley businesses. Mr. White moved to approve on second reading, seconded by Mr. Johnson. Mr. White moved to amend the last line in Section 5.12.140 (A) (1) (a), on page 12, to instead read “his or her parent, spouse or legal guardian who is at least twenty-one (21) years of age”, seconded by Mr. Cook. Motion to amend carried. Voting “yes” - all members of the governing body. Discussion followed on preparation of a substitute in time for the next Finance Committee meeting; ordinance sections of concern to liquor dealers, and ordinance being too restrictive. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mr. Johnson and Mr. Roybal voting “no”.

ORDINANCE – 1st READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from MR Medium-Density Residential and P Public to NR-3 Neighborhood Residential – High Density and P Public for Lots 1-20, Block 1 and Lots 1-18, Block 2 of Ehernberger Subdivision and a portion of Frank Court (Res. No. 5732), Sunnyside Addition 7th Filing, to be vacated, being located in a portion of the SW¼, NE¼, of Section 27, Township 14 N, Range 66 W of the 6th Principal Meridian in Cheyenne, Wyoming (located at the northeast corner of the intersection of College Drive and Rock Springs Street) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from LI-Light Industrial to MUR—Mixed Use Residential Emphasis for a parcel of land situated at the South

48 feet of Lot 1, Block 285, Original City, Cheyenne, Wyoming, to be known as 1920 Dillon Avenue (located on the west side of Dillon Avenue between 19th and 20th Streets) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending the City of Cheyenne’s Solid Waste Fee Schedule – referred to Finance Committee. (Sponsor – Mr. Roybal)

RESOLUTION – Approving the budget of the Cheyenne Downtown Development Authority for the Fiscal Year beginning July 1, 2017 and ending June 30, 2018. Mr. White moved to adopt, seconded by Mr. Johnson. Upon inquiry, Sylvia Hackl, City Attorney, advised if the resolution is postponed it would be back for consideration at the June 26, 2017 meeting, and postponement would allow time to review what components could be amended as related to the budget ordinance approved earlier in the meeting which reduced block grant funding to the DDA in the amount of \$60,000.00. Mr. Shanor moved to postpone to June 26, 2017, seconded by Mr. Laybourn. Motion to postpone carried. Voting “yes” -- all members of the governing body.

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for Saddle Ridge, 12th Filing, a replat of Lots 2-37, Block 1; Lots 1-26, Block 2; Lots 1-8, Block 3; Lots 2-15; Block 4; Lots 1-12, Block 5; and Lots 1-11, Block 6 of Saddle Ridge, 8th Filing, Cheyenne, Wyoming (located at the northeast corner of the junction of Wilderness and Red Feather Trails, north of E. Pershing Boulevard. Motion (per Consent Agenda) carried. (#5856)

RESOLUTION – Adopting an amendment to the land use categories under Urban Residential Zone Districts in PlanCheyenne, the master plan for the City of Cheyenne and the comprehensive plan for portions of Laramie County. Mr. Roybal moved to adopt, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body. (#5857)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming Department of Transportation for a Wyoming Rural Public Transportation program grant to provide the local match for operating funds for the City of Cheyenne for its transit program, as authorized by 49 U.S.C. §5311. Motion (per Consent Agenda) carried. (#5858)

[CA] RESOLUTION – Approving outside user water and sanitary sewer services, by outside user’s agreement, with Cooley Construction, LLC, Lot 15, Block 16, North Cheyenne, Second Filing, according to the official plat for record in Laramie County, Wyoming – referred to Finance Committee. (Sponsor - Mr. Laybourn)

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for the use of City-owned land and buildings for parking, camping, and other activities during the 2017 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#6669)

[CA] Memorandum of Understanding between Cheyenne Frontier Days, Inc., the City of Cheyenne and Laramie County School District Number One, for buses owned by the Laramie County School District Number One to be used and operated for public transportation services

during the 2017 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#6670)

[CA] Agreement between the City of Cheyenne and Cheyenne Frontier Days, Inc., for buses owned by the Laramie County School District Number One to be used and operated for public transportation services during the 2017 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#6671)

[CA] Agreement between the City of Cheyenne and Cheyenne Frontier Days, Inc., for United States Department of the Air Force owned land located at F.E. Warren Air Force Base to be used and operated as a parking lot for public transportation services during the 2017 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#6672)

[CA] Agreement between the City of Cheyenne and the Cheyenne Competitive Baseball Association d/b/a Cheyenne Mustangs Baseball for the purpose of sponsoring the CABA (Continental Amateur Baseball Association) 18U 2017 Wood Bat World Series to be held in Cheyenne August 4-12, 2017. Motion (per Consent Agenda) carried. (#6673)

[CA] Agreement and related warranty deed between the City of Cheyenne and Cheyenne, Light, Fuel & Power Company d/b/a Black Hills Energy for the pipeline easement along the proposed Chicago Burlington & Quincy railroad trail in JL Ranch Subdivision, and affiliated acquisition of property by the City (Greenway Right-of-Way). Motion (per Consent Agenda) carried. (#6674).

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for the use of the Cheyenne Civic Center for the youth education concerts – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for the use of the Cheyenne Civic Center for the 2017-2018 concert season – referred to Finance Committee.

[CA] Real Estate Purchase Agreement between Manuel M. Sena and the City of Cheyenne for the City's purchase of real property located at 2327 Westland Road, Cheyenne, Wyoming, to be used for public purposes – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County, Wyoming, to provide public transportation services to Laramie County Community College and for an area of Laramie County immediately adjacent to the City (Revenue to City) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Youth Alternatives and Laramie County Community Partnership, Inc., for academic and enrichment activities for at-risk school-age youth at Johnson Junior High School (21st Century Community Learning Centers Cohort Eight grant funds) – referred to Finance Committee.

Consideration of Bid #S-12-17 for a contract between the City of Cheyenne, Facilities Maintenance Division, and Ameri-Tech HVAC Services, Inc., of Cheyenne, for mechanical and HVAC systems maintenance for 14 City Buildings Project. Vicki Nemecek, Director of Public Works, advised bids were received from Ameri-Tech HVAC Services, Inc. and Long Building Technologies, and explained bid requirements and irregularities incurred by both bidders affiliated with the bidding process involving a bid being submitted to an incorrect location and residency information. She noted that City attorney staff determined that both companies are considered to be resident businesses and that Ameri-Tech HVAC Services' bid was the lowest bid. Brian Dubois, Long Building Technologies, provided an overview of the company and services it could provide; expressed his belief that it would be unfair to award the bid to Ameri-Tech, and provided information on his company's bid and process followed for submitting the bid. During his comments, Mr. Dubois submitted a copy of a page from the City's bid document affiliated with proof of residency if a bidder was a Wyoming resident bidder (on file with City Clerk's office). Jim Brown, Ameri-Tech HVAC Services, Inc., discussed elements of the City's bid document, the bidding process, and information submitted with his company's proposal. Mr. White moved to accept the bid from Ameri-Tech HVAC Services, Inc. in the amount of \$261,000.00, seconded by Mr. Johnson. Upon inquiry, Mr. Brown advised they have been awarded contracts to provide these services for many years, noting the City goes out to bid approximately every two to three years, and Sara Vasquez, Purchasing Manager, verified that bids for a contract are requested every two years with notices sent to numerous bidders in addition to advertising, and that Ameri-Tech has been the sole bidder in recent years. Discussion included the City's bid process and procedures; reviewing practices utilized by other municipalities in the region; reviewing bids for best quality and performance and not necessarily based upon the lowest bid; fiscal savings to the City by accepting the lowest bid, and re-evaluating the RFP document for future bids. Upon inquiry during discussion, Ms. Nemecek stated that the bid is fairly standard for HVAC services; advised that the RFP (Request for Proposals) is updated every two years with information pertaining to the facilities involved, and indicated many upgrades to HVAC systems have been made over the years to improve facility efficiencies. Mr. Dubois provided information on why Long Building Technologies hasn't submitted a bid in the past, and differences they have noticed in RFP's outside of the City which are more performance based and not based on lowest price. Upon inquiry, Sylvia Hackl, City Attorney, explained that state statutes require approval of the lowest responsive bidder for public works projects but it's unclear what constitutes "public works". Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Laybourn, Mr. Shanor and Mayor Orr voting "no". (#6675)

[CA] Consideration of Bid #E-25-17 for furnishing 70 new computers and operating systems for the City of Cheyenne (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract No. 6305 between the City of Cheyenne and RBC Global Asset Management (U.S.) Inc. for City financial asset investment professional services – referred to Finance Committee.

[CA] Contract Modification #1 to Contract No. 6622 between the City of Cheyenne and Reiman Corporation and Contract No. 6626 between the City of Cheyenne and Waste Management of Colorado, Inc. for the purpose of re-allocating funds due to unforeseen site

conditions involving the excavation and disposal of waste soil for the Pumphouse Wetlands Project (1% Specific Sales and Use Tax) – referred to Finance Committee.

Appointment of Jason Bogstie to the Historic Preservation Board. Mr. Roybal moved to approve, seconded by Mr. Johnson. Voting “yes” -- all members of the governing body with the exception of Mayor Orr who did not vote (Mayoral appointee).

Announcement was made of a Public Hearing to be held June 26, 2017 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, for a retail liquor license transfer of ownership application filed with the City Clerk’s Office for Maverik, Inc. d/b/a Maverik, Inc. #426, 140 Gardenia Drive, Cheyenne, Wyoming (License currently held by Lambousis Revocable Trust, d/b/a The Mayflower, 112 West 17th Street, Cheyenne, WY).

Announcement was made that two Calcuttas, benefitting Cheyenne area charities, will be held as follows: Monday, July 17, 2017 beginning at 5:30 p.m. in the Cowboy Bistro, located beside the Rodeo Committee Cabin at Frontier Park, in conjunction with the 2017 Rodeo event, and Saturday, July 29, 2017 beginning at 5:30 p.m. in the Headquarters tent located in front of the Old West Museum, 4601 North Carey Avenue, Frontier Park, Cheyenne, Wyoming, in conjunction with the 2017 Champion Bull Riding (CBR) event (10% of proceeds to bona fide charities).

Announcement was made of the Re-Appointments of Sam Galeotos and Judith Myers to the Downtown Development Authority Board; Terence Michael Roker to the Public Transit Advisory Board; Barry Sims and Tony O’Brien to the Tourism Promotion Joint Powers Board (Visit Cheyenne Board) to be confirmed June 26, 2017.

Announcement was made of the Appointments of John Edwards to the Board of Public Utilities; Paula Scott to the Community Action of Laramie County-Executive Board; Steve Borin and Jonathan Savelle to the Downtown Development Authority Board; Lisa Smith, G. Michael Hager and Justin Zeman, to the Mayor’s Council for People with Disabilities; Barbara Fecht, Jennifer Lundberg and Jordan Evans, to the Public Transit Advisory Board; Domenic Bravo to the Tourism Promotion Joint Powers Board (Visit Cheyenne Board) to the confirmed June 26, 2017.

Upon inquiry under other business, Mayor Orr advised staff will be working on the FEMA extension request for the Civic Center Commons Project, and Carol Intlekofer, City Clerk, clarified that procedurally one motion is made for the approval of proposed appointees to serve on boards and committees and that Council members have the opportunity to divide the question, which allows for a separate vote on each appointee if they so choose.

There being no further business to come before the governing body, the meeting was officially adjourned at 10:58 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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